portant stay considerations (the risk of irreparable harm and the equities) this application is not a close call. The Government misses the mark by a mile.

JUSTICE THOMAS, dissenting.

The President of the United States seeks relief from a court order that restores a principal executive officer to her position after the President removed her. President Biden appointed Lisa Cook to the Board of Governors of the Federal Reserve System in 2022. The Board, unlike the Federal Reserve Banks, is a federal executive agency that regulates much of the Nation's economy. After President Trump was elected, he learned that Cook may have committed mortgage fraud, a federal crime punishable by up to 30 years in prison, shortly before she took office. He thus removed Cook from the Board. He did so pursuant to his authority to remove principal executive officers under Article II of the Constitution and a statute that expressly authorizes him to remove officers on the Board for "cause."

Pauer Proof Pending Publication

Cook sued in federal court to reclaim her office. She argued that her office was her "property," which the President could not deprive her of without "due process of law." She also argued that her apparent mortgage fraud was not a "cause" to remove her, and that the statute authorizing the President to remove her for "cause" implicitly required that the President provide her with notice and a hearing before any such removal. The District Court entered an injunction against Cook's removal. Today, this Court denies the President a stay of that injunction, allowing Cook to continue to exercise executive power after being removed by the President.

The Court's decision is incorrect. Cook's office was not her "property" because, in this country, government officials do not own the public offices in which they serve. Apparent mortgage fraud was a "cause" to remove Cook. And, the statute authorizing the President to remove Cook for "cause"

says nothing about notice or a hearing, so it does not require notice and a hearing. Any other result would violate Article II of the Constitution, under which the President may remove executive officers at will. The Court makes many policy arguments for an "independent" banking agency that exercises executive power free from accountability, *ante*, at 538, but those are ultimately arguments against the Constitution.

The federal courts also lack the authority to enter the relief that the Court upholds today. This Court has held that a plaintiff cannot obtain relief against anyone, let alone the sovereign, without a right of action, but now it rules that Cook may obtain such relief without identifying one. It has held that federal courts lack equitable authority to interfere with the removal of public officers, but it recognizes an exception to that rule for Cook. And, it has held that Congress and the Judiciary cannot encroach on the President's exclusive and preclusive powers, which include his power to remove executive officers, but it prevents the President from exercising that power here. Although the Court expresses concern that the President removed a Board member for "the first time in the Federal Reserve's 111-year history," *ante*, at 534, it expresses no such concern that it today upholds an injunction against the President's removal of an executive officer for the first time in the Constitution's 237-year history.

Page Proof Pending Publication

I respectfully dissent.

I

A

When President Wilson signed the Federal Reserve Act in 1913, few would have described it as following in a "'long tradition.'" *Ante*, at 559. Before the Federal Reserve Act, the American tradition of central banking consisted mainly of the First and Second Banks of the United States, two short-lived corporations. See Act of Feb. 25, 1791, ch. 10, 1 Stat. 191; Act of Apr. 10, 1816, ch. 44, 3 Stat. 266. Congress

chartered the First and Second Banks of the United States to provide banking services to the Federal Government. See ch. 10, 1 Stat. 191–196; ch. 44, 3 Stat. 266. These banks possessed no sovereign power. See ch. 10, 1 Stat. 191; ch. 44, 3 Stat. 266. "Unlike modern central banks," the First and Second Banks of the United States "did not officially set monetary policy" and did not "regulate, hold the reserves of, or act as a lender of last resort for other banks." Fed. Reserve Bank of Philadelphia, The First Bank of the United States 8 (2021) (emphasis deleted); accord, Fed. Reserve Bank of Philadelphia, The Second Bank of the United States 9 (2021). Alexander Hamilton defended the First Bank of the United States precisely because its capabilities would "only concern the disposition of its own property" and "essentially resemble the rules of a private mercantile partnership." Final Version of an Opinion on the Constitutionality of an Act to Establish a Bank, in 8 The Papers of Alexander Hamilton 110 (H. Syrett & J. Cooke eds. 1965).

Page Proof Pending Publication

The advocates of the Federal Reserve Act did not take themselves to be following in this tradition. Instead, they ridiculed it, describing the United States before the Federal Reserve Act as "at about the same point that had been reached by Europe at the time of the Medicis, and by Asia, in all likelihood, at the time of Hammurabi." P. Warburg, Defects and Needs of Our Banking System, N. Y. Times, Jan. 6, 1907, p. 14 (Defects and Needs). Paul Warburg, the architect of the Federal Reserve Act and himself a German citizen at the time, began advocating in 1907 for this country to follow the model of the German Reichsbank, which he described as "the most perfect organization of its kind." *Ibid.*; see Warburg a Leader in Banking Reform, N. Y. Times, Jan. 25, 1932, p. 5. The Reichsbank and other European banks could, unlike American banks, rediscount notes, serve as a lender of last resort, and adjust the money supply. See Defects and Needs 14. In Warburg's view, "the system of

all other important nations has proved to be excellent and ours has proved to be defective." *Ibid.*

The champion of the Federal Reserve Act in Congress shared this understanding. Senator Nelson Aldrich, "the most influential figure in Congress on financial matters," joined forces with Warburg to enact banking legislation. M. Whitehouse, Paul Warburg's Crusade to Establish a Central Bank in the United States, 3 The Region 7, 9 (May 1989) (Whitehouse). Aldrich too "envisioned a European-type central bank for the United States." *Id.*, at 10; accord, 1 P. Warburg, The Federal Reserve System: Its Origin and Growth 33, 56 (1930) (Warburg). Aldrich, like Warburg, wanted "to transplant the system of one of the great European banks . . . bodily to America." N. Stephenson, Nelson W. Aldrich: A Leader in American Politics 378 (1930) (Stephenson).

Warburg and Aldrich formulated the "Aldrich Plan" that would eventually lead to the Federal Reserve Act. They met in 1910 with "representatives of three extremely significant New York banks," *id.*, at 373, "to formulate a plan for U. S. banking and currency reform that Aldrich could present to Congress," Whitehouse 11. According to Warburg, "Senator Aldrich pledged all participants to secrecy." 1 Warburg 60, and n. 2; accord, Whitehouse 11; Stephenson 373, 484. In 1911, Senator Aldrich published the eventual plan, which proposed new reserve banks with the capabilities of European banks. See The Aldrich Plan for Banking Legislation (1911); Whitehouse 11–12; 1 Warburg 42, 61–62, 178–423.

Newly elected President Woodrow Wilson agreed with much of the Aldrich Plan, but "insist[ed] upon" an executive agency that would exercise "governmental control" over the banking economy. A. Link, Woodrow Wilson and the Progressive Era, 1910–1917, p. 48 (1954) (Link); see also 1 Warburg 81–91. Wilson, in this respect, was also departing from tradition. He had long believed that "bureaucrats might

Page Proof Pending Publication

more effectively govern the country than the American people." *Perez* v. *Mortgage Bankers Assn.*, 575 U. S. 92, 130, n. 6 (2015) (THOMAS, J., concurring in judgment). Wilson's ideal system of government was not the tripartite and limited one enshrined in our Constitution, but the German Empire's system of unified administrative power, which he, echoing Warburg, saw as "nearly perfected." W. Wilson, The Study of Administration, 2 Pol. Sci. Q. 197, 204 (1887); see *id.*, at 207, 214–219. Wilson disliked the American system of government because it ultimately depended on the will of the people, whom Wilson believed were "selfish, ignorant, timid, stubborn," and "foolish." *Id.*, at 208; see also, *e. g.*, *id.*, at 214; W. Wilson, Constitutional Government in the United States 4–5, 56–57 (1908); 1 W. Wilson, College and State 106–107, 111–129, 396–415 (1925). America, Wilson said, did "too much by vote" and too little by expert administrative bodies (or, in his words, "executive expertness"). Wilson, 2 Pol. Sci. Q., at 207, 214. So, when Wilson learned of the Aldrich Plan, he asked for it to include a novel executive agency to govern the banking economy. See Link 47–48; 1 Warburg 421–423; R. Cushman, The Independent Regulatory Commissions 151 (1941) (Cushman).

Case Document Pending Publication

Thus was born the Federal Reserve Board. The Board was the "second independent regulatory commission" in American history, following the Interstate Commerce Commission. *Id.*, at 146. Unlike the First and Second National Banks, which possessed no sovereign power, the Federal Reserve Board would be a "new federal agency" with "broad powers affecting the entire banking and currency system." *Id.*, at 153; see also Link 43–53. The Board would regulate the newly created reserve banks, private commercial banks, and private individuals. See *infra* this page and 570–571. Warburg saw the Board as an "expert government body" for "the state of the future." 2 Warburg 494, 502; see *id.*, at 491.

Wilson signed the Federal Reserve Act into law in December 1913. Act of Dec. 23, 1913, ch. 6, 38 Stat. 251. He ap-

pointed Warburg to the Federal Reserve Board the following year. 1 Warburg 144. Warburg would soon reflect that "[t]he Federal Reserve Act brought about a most radical change." 2 *id.*, at 447.

B

The Federal Reserve Act authorized the incorporation of up to 12 Federal Reserve Banks and created the Federal Reserve Board. §§2, 4, 10–11, 38 Stat. 251–257, 260–263. The Federal Reserve Banks were "private corporations in which the government has an interest." *Emergency Fleet Corp.* v. *Western Union Telegraph Co.*, 275 U. S. 415, 426 (1928). The reserve banks had the capabilities, like the European banks after which they were modeled, to rediscount notes, serve as a lender of last resort, and adjust the money supply. See §§4, 13, 14, 19, 38 Stat. 254–257, 263–265, 270–271. They had corporate boards and the ordinary powers of private corporations, such as to contract, and to sue and be sued. §4, *id.*, at 254–257; 12 U. S. C. §§301, 341. They were owned by "national banks," a class of private commercial banks required by the Federal Reserve Act to purchase stock in the reserve banks. Ch. 6, §2, 38 Stat. 251–253.

Page Proof Pending Publication

The Federal Reserve Board, by contrast, was an executive agency. The Board, now called the Board of Governors of the Federal Reserve System, was the "keystone" of the Act. E. Kemmerer, The ABC of the Federal Reserve System 84 (5th ed. 1920); see 12 U. S. C. §241. At its inception, as today, the Board had the power to regulate most of the banking economy. The "Board of Governors of the Federal Reserve System" has thus always been understood as "an agency of the United States Government." *9 to 5 Org. for Women Office Workers* v. *Board of Governors of Fed. Reserve*, 721 F. 2d 1, 2 (CA1 1983); see also Who We Are, The Federal Reserve, www.federalreserve.gov/aboutthefed/fedexplained/who-we-are.htm (archived at perma.cc/AT2P-MT3W) ("a federal agency located in Washington, D. C.");

Corner Post, Inc. v. *Board of Governors*, 603 U. S. 799, 806 (2024) ("agency").

The original Federal Reserve Act gave the Board a wide range of powers that this Court has held to be executive. See *Trump* v. *Slaughter*, 609 U. S. 422 (2026); *Seila Law LLC* v. *Consumer Financial Protection Bureau*, 591 U. S. 197, 218–219 (2020). The Act granted the Board the power to, among other things, impose "rules and regulations" on ordinary commercial banks, § 9, 38 Stat. 259; "examine at its discretion" the papers and effects of reserve banks and national banks, § 11(a), *id.*, at 261; regulate national banks in establishing foreign branches, § 25, *id.*, at 273–274; set rates to be charged by reserve banks, § 14(d), *id.*, at 265; fix "by rule" national bank check-clearing charges, § 16, *id.*, at 266–268; and impose penalties on national banks, § 19(c), *id.*, at 270–271.[1] Over the years, Congress has given the Board

[1] This list of powers is far from comprehensive. The Federal Reserve Act also gave the Board the power to "adopt and promulgate rules and regulations governing the transfers of . . . stock," § 2, 38 Stat. 253; impose "rules and regulations" on the boards of the reserve banks, § 3, *id.*, at 254; impose "orders" on the boards of the reserve banks, § 4, *id.*, at 255; order banks that violate the law or its own regulations to "surrender [their] stock," § 9, *id.*, at 260; levy semiannual assessments on the reserve banks, § 10, *id.*, at 261; "require" any "statements and reports" deemed necessary from reserve banks and national banks, § 11(a), *ibid.*; require reserve banks to rediscount at fixed interest rates, § 11(b), *id.*, at 262; suspend reserve requirements, § 11(c), *ibid.*; "establish a graduated tax" on reserve deficiencies, *ibid.* "suspend or remove" reserve bank officers and directors, § 11(f), *ibid.*; suspend, liquidate, and reorganize reserve banks, § 11(h), *ibid.*; adopt "rules and regulations" for the purchase and sale of cable transfers, bankers' acceptances, and bills of exchange eligible for rediscount, § 14, *id.*, at 264–265; prescribe "regulations" for the substitution of collateral, § 16, *id.*, at 265–268; "make and promulgate . . . regulations governing the transfer of funds and charges therefor" among reserve banks and their branches, § 16, *id.*, at 268; require reserve banks to exercise the functions of a clearing house and to purchase bonds, §§ 16, 18, *id.*, at 265–268, 268–270; and order examination of state banks and trust companies, § 21, *id.*, at 271–272.

Page Proof Pending Publication

more powers, including the power to issue fines of $1 million per day on banks that violate Board reporting requirements, 12 U. S. C. § 324; to authorize persons to act as law enforcement officers, § 248(q); and to regulate nonbank financial companies and bank holding companies, § 5365. This Court recently heard a challenge to a Board regulation that set the fees on consumer debit-card transactions. See *Corner Post*, 603 U. S., at 805–806; 76 Fed. Reg. 43394 (2011). The Board also regularly issues orders prohibiting private individuals from working for banks, enforceable with civil and criminal penalties. See Board of Governors of the Federal Reserve, Enforcement Actions (July 28, 2023), www.federalreserve.gov/supervisionreg/enforcementactions.htm (archived at perma.cc/UVQ4-99ZR); see 12 U. S. C. § 1818(g).

The Federal Reserve Act authorizes the seven members of the Board to serve 14-year terms unless the President dismisses them for "cause." § 242. Congress included the "cause" requirement in the original 1913 Act, see § 10, 38 Stat. 260, inadvertently removed it in 1933, and restored it in 1935. See Cushman 167–169; Act of June 16, 1933, § 6(a), 48 Stat. 166–167; Act of Aug. 23, 1935, § 10, 49 Stat. 704–705. In full, the Act's relevant provision, which is the sole basis for the Court's decision today, states that "each member shall hold office for a term of fourteen years from the expiration of the term of his predecessor, unless sooner removed for cause by the President." 12 U. S. C. § 242. Unlike many other contemporaneous statutes that provided for removal only after "notice and a hearing," see *infra*, at 584–587, the Act does not mention notice or a hearing.

Page Proof Pending Publication

C

In 2022, President Biden appointed and the Senate confirmed Lisa Cook to the Board. President Biden reappointed Cook to serve a full 14-year term in 2023. She remained in office after President Trump's election and inauguration.

In 2025, the Director of the Federal Housing Finance Agency referred evidence to the Department of Justice suggesting that, shortly before taking her position on the Board, Cook committed mortgage fraud. On June 18, 2021, Cook obtained a $203,000 mortgage to purchase a property in Michigan. In the mortgage agreement, Cook indicated that she would use the Michigan property as her "principal residence for at least one year" starting shortly after signing. Complaint in No. 1:25–cv–02903 (D DC), ECF Doc. 1–2, Exh. A, p. 3. Just 14 days later, Cook obtained a second mortgage of $540,000 for a property in Georgia. *Ibid.* In her agreement for that mortgage, she also said that she would use the Georgia property as her primary residence for one year. *Ibid.* These commitments were relevant because primary-residence mortgages are often eligible for lower interest rates than other mortgages. See Fannie Mae, Getting It Right—Reverification of Occupancy 1 (June 2021). For that reason, the Federal Government can criminally prosecute mortgage applicants for falsely claiming that a property is a principal residence, with penalties of up to 30 years in prison. See 18 U. S. C. §§ 1014, 1344; K. Harney, A Little Lie on Mortgage Application Can Cost You Big, Wash. Post, July 1, 2015, p. SS1–9.

Page Proof Pending Publication

The President responded by removing Cook from office. He wrote to her: "Pursuant to my authority under Article II of the Constitution of the United States and the Federal Reserve Act of 1913, as amended, you are hereby removed from your position on the Board of Governors of the Federal Reserve, effective immediately." ECF Doc. 1–3, Exh. B, p. 2. He explained that "there is sufficient reason to believe that you may have made false statements on one or more mortgage agreements" because "you signed one document attesting that a property in Michigan would be your primary residence for the next year," then "[t]wo weeks later, you signed another document for a property in Georgia stating that it would be your primary residence for the next year." *Ibid.*

"It [was] inconceivable that you were not aware of your first commitment when making the second," the President said, and "[i]t [was] impossible that you intended to honor both." *Ibid.*

The President explained why, in his view, Cook should not remain on the Board. The Board "has tremendous responsibility for setting interest rates and regulating reserve and member banks." *Ibid.* "The American people must be able to have full confidence in the honesty of the members entrusted with setting policy and overseeing the Federal Reserve." *Ibid.* Thus, the President explained to Cook that because of "deceitful and potentially criminal conduct in a financial matter," neither he nor the American people could any longer "have such confidence in your integrity." *Ibid.* "At a minimum," the President concluded, "the conduct at issue exhibits the sort of gross negligence in financial transactions that calls into question your competence and trustworthiness as a financial regulator." *Ibid.* The President informed Cook that he had "determined that faithfully executing the law requires your immediate removal from office." *Ibid.*

Page Proof Pending Publication

D

Cook sued President Trump, then-Board Chairman Jerome Powell, and the Board. As relevant here, she brought three claims. First, she argued that the President's removal violated her rights under the Due Process Clause, which forbids the deprivation of "life, liberty, or property, without due process of law," Amdt. 5, because the public office was her "property," ECF Doc. 1, p. 20. Second, she argued that the President's removal violated the Federal Reserve Act's provision authorizing him to remove her for "cause," 12 U. S. C. §242, because he "did not cite appropriate cause for removing her," ECF Doc. 1, p. 18. Third, she argued that the President's removal violated the same provision because the term "for cause" is a "term of art" that includes a "right to

notice and a hearing." *Id.*, at 19–20. Cook presented no evidence that the allegations against her were false.

For a right of action, Cook invoked the Declaratory Judgment Act, the All Writs Act, and the District Court's "traditional equitable jurisdiction." *Id.*, at 18–22. As to relief, Cook sought an injunction against Powell and the other officers of the Board ordering that they refrain from "effectuating" her removal and that they "treat" her as if she were not removed. *Id.*, at 23. She sought a writ of mandamus commanding the same. She also sought a declaration that the removal was void and that she is "an active member of the Board of Governors of the Federal Reserve." *Ibid.*

The District Court entered an injunction restoring Cook to her position. It "requir[ed] Defendants Powell and the Board of Governors of the Federal Reserve to allow Cook to remain a member of the Board during the pendency of this litigation." 804 F. Supp. 3d 14, 44 (DC 2025). The District Court held that Cook's removal likely violated the Due Process Clause. *Id.*, at 33. It reasoned that Cook had a "property" right to "her continued position as a member of the Board of Governors," so the President's removal deprived her of property without due process of law. *Ibid.* It also held that President Trump did not remove Cook for "cause" because he removed her for conduct preceding her appointment. *Id.*, at 22–30. It did not address Cook's argument that she was statutorily entitled to notice and a hearing. The District Court concluded that the harms and equities favored Cook because she was prevented from "discharging her duties as a Federal Reserve Governor" and the President's removal harmed "the agency's independence." *Id.*, at 40, 43. The District Court did not hold that Cook satisfied the heightened standard for ultra vires or mandamus relief.

The Court of Appeals for the D. C. Circuit denied a stay pending appeal. Although there was no opinion for the court, Judge Garcia, joined by Judge Childs, wrote a concurring opinion. Judge Garcia relied solely on the Due Process

Page Proof Pending Publication

Clause, explaining that the President's removal of Cook likely deprived her of her "property interest in her position." 2025 WL 2654786, *1 (Sept. 15, 2025). He did not address Cook's argument that the President's removal was not for "cause" under the Federal Reserve Act or that a "for cause" removal provision implicitly requires notice and a hearing. He also did not hold that Cook satisfied the heightened standard for ultra vires or mandamus relief.

Judge Katsas dissented. He explained that Cook lacked a right of action to sue government officials otherwise entitled to sovereign immunity, so she could succeed only if she satisfied "the demanding standards for raising an *ultra vires* claim," which this Court has described as "'essentially a Hail Mary pass'" that requires showing an extreme legal error. *Id.*, at *6 (quoting *NRC* v. *Texas*, 605 U. S. 665, 681–682 (2025)). Judge Katsas then explained that the President's removal of Cook was not unlawful at all, let alone so extremely unlawful as to warrant ultra vires relief. As to the process for the removal, Judge Katsas explained that President Trump did not deprive Cook of property without due process, because, under this Court's precedents, "'public offices are mere agencies or trusts, and not property as such.'" 2025 WL 2654786, *8 (quoting *Taylor* v. *Beckham*, 178 U. S. 548, 577 (1900)). As to the basis for the removal, Judge Katsas explained that "[f]raud is an excellent reason for removal, not merely a permissible one." 2025 WL 2654786, *7 (internal quotation marks and brackets omitted).

Page Proof Pending Publication

President Trump applied to this Court for a stay. The President is entitled to a stay if he is likely to succeed on the merits and the balance of the harms and equities favors him. See *Nken* v. *Holder*, 556 U. S. 418, 434 (2009). This Court deferred its decision on the application pending oral argument. Today, citing the need to maintain "the independence of the Federal Reserve," *ante*, at 549, the Court denies the President's application. It holds that the Federal Reserve Act provision authorizing the President to remove Cook for

"cause" prohibited him from removing her for cause unless he first provided notice and a hearing. It also holds that federal courts can enter injunctive relief restoring a principal executive officer to her position after the President removes her.

II

The President is likely to succeed on the merits. The President's removal complied with the Due Process Clause because, in our system of government, officials do not own the public offices that they hold. The President's removal likewise complied with the statute because he removed Cook for "cause" and because the statute does not require notice and a hearing. Were there any doubt about what the statute requires, the canon of constitutional avoidance counsels strongly against reading it to implicitly restrict the President's Article II removal power. Finally, federal courts lack the power to grant the relief that Cook received.

Page Proof Pending Publication

A

The President is likely to succeed as to each of Cook's three claims.

1

The President's removal of Cook did not violate the Due Process Clause. That Clause prohibits the Federal Government from depriving a person of "life, liberty or property, without due process of law." Amdt. 5. To succeed in her due-process challenge, Cook must show that she "has been deprived of a protected interest in 'property.'" *American Mfrs. Mut. Ins. Co.* v. *Sullivan*, 526 U. S. 40, 59 (1999).

Cook has no property right to hold power on the Board. In our system of government, a "public office is not property." *Taylor*, 178 U. S., at 576. Cook's claim that she has a property right to exercise governmental power is "alien to the concept of a republican form of government." *Barnes* v. *Kline*, 759 F. 2d 21, 50 (CADC 1985) (Bork, J., dissenting). And, this Court's precedents have "consistently recognized"

that "government employment [is] not property or [an] otherwise cognizable interes[t] under the Due Process Claus[e]." *Gutierrez* v. *Saenz*, 606 U. S. 305, 332 (2025) (THOMAS, J., dissenting). Even "an officer appointed for a definite time or during good behavior" lacks a "vested interest or contract right in his office." *Crenshaw* v. *United States*, 134 U. S. 99, 104 (1890). "An unlawful denial" of "political office is not a denial of a right of property or of liberty secured by the due process clause." *Snowden* v. *Hughes*, 321 U. S. 1, 7 (1944).

Because the President did not deprive Cook of any protected interest in property, the Court rightly does not accept Cook's due-process claim.

2

The President's removal of Cook was also for "cause." 12 U. S. C. § 242. By authorizing the President to remove Cook for "cause" in the Federal Reserve Act, Congress gave Cook the weakest available removal protection, which this Court has described as weaker even than the relatively deferential "inefficiency, neglect of duty, or malfeasance in office" standard. *Collins* v. *Yellen*, 594 U. S. 220, 255–256 (2021) (internal quotation marks omitted); see, *e. g.*, 15 U. S. C. § 41. The "for cause" standard required nothing more than what the plain meaning suggests—a cause. Any "cause relating to the conduct, ability, fitness, or competence of the officer" would do. Black's Law Dictionary 796 (3d ed. 1933). A removal was for-cause if it was based on the removed officer's "bad habits, slovenliness, want of discretion, incompetency, or anything else which would show unfitness." *Fuller* v. *Ellis*, 98 Mich. 96, 106, 57 N. W. 33, 36 (1893). The standard was so low as to be functionally unreviewable. See M. Throop, The Law Relating to Public Officers § 396, p. 387 (1892).

Cook's alleged mortgage fraud is a "cause" for removing her. Because Cook purports to bring a freestanding equitable claim against the President, the Court's precedents require it to presume "[t]he validity of the reasons" given by the President for her removal and "the basis of fact on which they rest." *United States* v. *Chemical Foundation, Inc.*,

Page Proof Pending Publication

272 U. S. 1, 15 (1926); see also *United States* v. *Armstrong*, 517 U. S. 456, 464–465 (1996). The President determined that Cook, a principal executive officer, engaged in "deceitful and potentially criminal conduct" that called into question her "integrity," "competence," and "trustworthiness." ECF Doc. 1–3, p. 2. Cook's job is to regulate the banking economy, but she is alleged to have made facially contradictory representations to obtain her own mortgages by committing to primarily reside in two different places at the same time. ECF Doc. 1–2, pp. 2–3. The President determined that it was "inconceivable" that she was unaware of the contradiction and "impossible" that she "intended to honor both." ECF Doc. 1–3, p. 2. This alleged conduct would have been grounds to remove a loan officer at a bank, let alone someone vested with "broad powers affecting the entire banking and currency system." Cushman 153.

The Court rightly does not accept Cook's claim that the President lacked "cause" to remove her. The Court opines that "cause" means a "'substantial, reasonable and just'" reason, or a "'disqualification' akin to 'inefficiency' or 'incompetency.'" *Ante*, at 546. Given the presumption of regularity, the accusation of mortgage fraud—a financial crime punishable by up to 30 years in prison—satisfies that standard. The Court does not hold otherwise.

Page Proof Pending Publication

3

The President's removal of Cook complied with the statute regardless of whether he provided notice and a hearing. The statute, as its plain text makes clear, did not require the President to provide Cook with notice and a hearing. The Court errs in concluding otherwise. Its interpretation also renders the statute unconstitutional.

a

We, as courts, have no authority to change what statutes say. "Our duty is to read the statute according to the natu-

ral and obvious import of the language, without resorting to subtle and forced construction for the purpose of either limiting or extending its operation." *United States* v. *Temple*, 105 U. S. 97, 99 (1882). We have no power to "assume that Congress has omitted from its adopted text requirements that it nonetheless intends to apply." *Jama* v. *Immigration and Customs Enforcement*, 543 U. S. 335, 341 (2005). When we do, we improperly assume the legislative power.

In the Federal Reserve Act, Congress chose not to require that the President provide notice or a hearing to officers on the Board before removing them. The Federal Reserve Act specifies "only *causes* for removal," not "*procedures* for removal." *Ante*, at 544 (emphasis in original). The Act establishes a maximum term of service for members of the Board of Governors and sets only a substantive requirement for removal. In full, the relevant provision states:

> "[E]ach member shall hold office for a term of fourteen years from the expiration of the term of his predecessor, unless sooner removed for cause by the President." 12 U. S. C. § 242.

Page Proof Pending Publication

Although some contemporaneous statutes required that an officer be removed only "after notice and hearing," Act of July 11, 1919, ch. 6, § 6, 41 Stat. 68, see also *infra*, at 585, n. 4, the Federal Reserve Act conspicuously required neither notice nor a hearing.

b

The Court nonetheless interprets the Federal Reserve Act to say what it obviously does not—that notice and a hearing are required.

To justify its holding, the Court relies on the interpretive principle that common-law terms bear their common-law meanings. When "Congress borrows terms of art in which are accumulated the legal tradition and meaning of centuries of practice," those terms of art take on their common-law meanings rather than their ordinary ones. *Sekhar* v. *United*

States, 570 U. S. 729, 733 (2013) (internal quotations omitted); see *ante*, at 550–551. The term of art that the Court posits "carried with it a settled interpretation at common law," *ante*, at 551, is the Federal Reserve Act's statutory text providing that "each member shall hold office for a term of fourteen years from the expiration of the term of his predecessor, unless sooner removed for cause by the President." 12 U. S. C. §242. According to the Court, by providing for a "term of years limited only by removal 'for cause,'" this statutory text is a common-law term of art that means that a removed officer is "entitled to notice and some opportunity to respond prior to her termination." *Ante*, at 550–551.

The Federal Reserve Act's removal provision is not a common-law term of art that means perforce that a removed officer is entitled to notice and a hearing. The Court's interpretation of the removal provision is not based on the common law at all. In support of its notice-and-hearing requirement, the Court cites no "eminent common-law authorities" interpreting any of the terms of the Federal Reserve Act's removal provision. *Kahler* v. *Kansas*, 589 U. S. 271, 279 (2020). The Court's reasoning is instead based on two statutory-interpretation decisions that said nothing about the common law. See *ante*, at 550–554 (citing *Reagan* v. *United States*, 182 U. S. 419 (1901); *Shurtleff* v. *United States*, 189 U. S. 311 (1903)).

The Court thus invokes, apparently in the alternative, the principle that statutory terms should be interpreted consistently with prior judicial constructions of those terms. Under the prior-construction principle, "when judicial interpretations have settled the meaning of an existing statutory provision, repetition of the same language in a new statute is presumed to incorporate that interpretation." *Armstrong* v. *Exceptional Child Center, Inc.*, 575 U. S. 320, 330 (2015) (internal quotation marks omitted). Earlier this Term, this Court held that the prior-construction principle does not permit a court to depart from the ordinary meaning

Page Proof Pending Publication

of a statutory term, as the Court does here, unless the earlier judicial constructions of that term were ubiquitous and unanimous: "[T]o conclude that Congress incorporated a judicial definition into a statutory term," "we have required" a "'broad and unquestioned' 'judicial consensus.'" *Learning Resources, Inc.* v. *Trump*, 607 U. S. 229, 252–253, n. 5 (2026).

When Congress enacted the Federal Reserve Act, there was no "'broad and unquestioned'" judicial consensus that a "term of years limited only by removal 'for cause,'" *ante*, at 551, 553, forbade removals without notice and a hearing. In point of fact, many courts held the opposite. A "for cause" removal provision, courts explained, "not only fails to require any hearing or proceeding, but also strongly implies that the removal shall be summary, and without any antecedent proceeding." *In re Carter*, 141 Cal. 316, 321, 74 P. 997, 998 (1903). When an officer was "removable for cause," a court had no power to "review his action for the purpose of determining the sufficiency of the causes," even when the "order of removal" specified no cause. *United States ex rel. Garland* v. *Oliver*, 17 D. C. 47, 56 (1887). "[W]here the appointing power may remove for cause," it followed that the removed officer was not "entitled to notice and to a trial." *Patton* v. *Vaughan*, 39 Ark. 211, 215 (1882); see also, *e. g.*, *State ex rel. Ulrick* v. *Sanchez*, 32 N. M. 265, 291, 255 P. 1077, 1087 (1926) ("[N]either notice nor hearing is a necessary condition precedent to a valid removal").

Page Proof Pending Publication

The Court thus does not even attempt to muster the "required" "'judicial consensus.'" *Learning Resources*, 607 U. S., at 252–253, n. 5. The Court instead relies on only two opinions, each of which is an odd fit for the Court's conclusion. See *ante*, at 550–554. Both opinions, *Reagan* v. *United States*, 182 U. S. 419, and *Shurtleff* v. *United States*, 189 U. S. 311, ruled against officers who were, like Cook, removed without notice and a hearing. *Reagan* ruled against a commissioner "subject to removal . . . for causes prescribed by law" after he was removed for old age. 182 U. S., at 424; see *id.*, at 427. The removed officer was "given no notice

of any charge against him," and "no hearing." *Id.*, at 424. *Shurtleff* likewise ruled against an appraiser who could be "removed . . . by the President for inefficiency, neglect of duty, or malfeasance in office." 189 U. S., at 313; see *id.*, at 318–319. He was removed for no reason at all and with no process at all. *Id.*, at 312. *Reagan* and *Shurtleff* are not typically invoked in support of removed officers like Cook.

The Court's entire argument is built on a single line of dicta (which the Court repeats four times) from those opinions. *Ante*, at 551–553. In an aside, *Reagan* stated (and *Shurtleff* repeated) that "notice and hearing are essential" if "causes of removal are specified by constitution or statute, as also where the term of office is for a fixed period." *Reagan*, 182 U. S., at 425; see *Shurtleff*, 189 U. S., at 314. This one line does not interpret the "same language" that the Federal Reserve Act's removal provision used, so the prior-construction canon "has no application here." *Armstrong*, 575 U. S., at 330; contra, *ante*, at 553. The statute in *Reagan* provided for removals for "causes prescribed by law," 182 U. S., at 424, and the one in *Shurtleff* provided for removals "for inefficiency, neglect of duty, or malfeasance in office," 189 U. S., at 313. None of those phrases appears in the Federal Reserve Act. See 12 U. S. C. §242 ("shall hold office for a term of fourteen years from the expiration of the term of his predecessor, unless sooner removed for cause by the President").

Page Proof Pending Publication

Not even the underlying logic of the one line of dicta on which the Court relies supports its conclusion. In the Federal Reserve Act, no "causes of removal are specified," and this Court has never interpreted a mere "fixed" "term of office," *Reagan*, 182 U. S., at 425, to guarantee notice and a hearing. After all, hundreds of statutes provide for fixed terms of office, and nobody believes that all of those statutes implicitly require notice and a hearing.[2]

[2] In a footnote, the Court reasons that when officers are appointed for a fixed term but can be removed freely, their terms are not truly "'fixed'" (and so the language in *Reagan* and *Shurtleff* does not apply to them).

The Court thus has to rephrase even the one line of dicta to describe a new "form of tenure": a "term of years limited only by removal 'for cause.'" *Ante*, at 551. This "form of tenure" does not appear in either *Reagan* or *Shurtleff*; it is

---

Ante, at 554, n. 5. That reasoning contradicts both settled usage and this Court's precedents. See, *e. g.*, *Myers* v. *United States*, 272 U. S. 52, 190 (1926) (McReynolds, J., dissenting) (statute providing that each deputy postmaster "'shall hold his office for the term of four years, unless sooner removed by the President'" gave the deputy postmasters "fixed terms"); *Severino* v. *Biden*, 71 F. 4th 1038, 1046 (CADC 2023) ("[W]hen Congress provided for a three-year term of office, it did so with the settled understanding that its fixed term of service in no way limited the President's removal power"); *Parsons* v. *United States*, 167 U. S. 324, 328 (1897) (4-year term with no removal restriction was "fixed").

The language in *Reagan* and *Shurtleff* that the Court relies on thus implicates hundreds of statutes. See, *e. g.*, 2 U. S. C. §179n(c)(1) ("The term of each member of the Board shall be 4 years"); accord, 2 U. S. C. §§474(a), 476(d), 601(a)(3), 803(b), 1103(c), 1381(e), 1722(d)(1); 5 U. S. C. §§424(b)(2)(B), 424(d)(2)(B), 595(b), 1102(a), 1211(b), 7104(c), 7702(d)(6), 8472(e), 8473(c); 6 U. S. C. §§191(c), 204(c)(4), 318(c)(4), 665e(c); 7 U. S. C. §§2, 1627b, 5331, 5843, 6005, 6407(b)(5), 7104, 7414(b)(5), 7444, 7804(b)(5); 10 U. S. C. §§152, 177(a)(5), 178, 183(b)(2), 942(b), 1114, 2113a(c), 7037, 7455, 8088, 8468, 9037, 9455, 10505; 12 U. S. C. §§302, 635a, 1427, 1441b(c)(2), 1701j–2, 1701y(b)(2), 1752a(c), 1812, 2242, 3013; 13 U. S. C. §21(b); 14 U. S. C. §§302, 318(a), 1903(b)(4); 15 U. S. C. §§41, 77cc, 78d, 78*o*–4, 78ccc(c)(4), 278, 278g–4, 278k(m), 1275, 2053, 3717, 4102, 4603; 16 U. S. C. §§410y–4, 410cc–31, 410ww–21, 410yy–8, 410iii–7, 450jj–6, 460u–7, 460x–3, 460bb–4, 460cc–3, 460ii–5, 460ss–2, 460ss–3, 460zz–2, 460kk(q)(2), 590h, 773a, 792, 831a, 932, 953, 1055, 1401, 1852, 2105, 4004, 4403, 5003, 7002, 7003, 7004, 7005; 17 U. S. C. §802; 18 U. S. C. §3006A; 19 U. S. C. §§1330, 2605; 20 U. S. C. §§43, 76h, 76cc, 80, 80f, 80n, 954, 955, 956, 957, 1066f, 1134a, 2004, 2103, 3702, 4303, 4412, 4502, 4703, 5508, 5603, 9105a, 9578; 21 U. S. C. §379dd; 22 U. S. C. §§283a, 286a, 290f, 290i–1, 1469, 1622c, 2131, 4605, 6203, 6205, 6431; 25 U. S. C. §§305, 2704; 26 U. S. C. §7443; 28 U. S. C. §§152, 541, 561, 581, 629, 631, 992; 29 U. S. C. §§153, 175, 49*l*–2, 780, 792, 1302; 30 U. S. C. §823; 31 U. S. C. §§703, 751, 5135; 33 U. S. C. §§857–14, 892c, 1128, 1363; 36 U. S. C. §§2302, 40702, 151703, 152403, 300104; 38 U. S. C. §§547, 7101, 7253; 39 U. S. C. §202; 41 U. S. C. §§1501, 8502; 42 U. S. C. §§218, 242c–1, 242k, 280e–11, 280i–2, 281, 282, 283k, 284a, 285c–4, 285d–7, 285m–4, 285q–2, 286a, 290b, 290aa–1, 291k, 294*o*, 294q, 300j–5, 300u–6, 300aa–19, 902, 903, 1395b–6, 1395ee, 1395*oo*, 1396, 1397k–1, 1863,

a classification that the Court discovers for the first time today. *Ante*, at 551. And, as far as I am aware, no court ever before today (including the two courts below) has held that any federal statute implicitly requires notice and a hearing when it provides for a term of years limited by removal for cause. The Court thus "falls well short" of the standard "required to conclude that Congress incorporated a judicial definition into a statutory term." *Learning Resources*, 607 U. S., at 252–253, n. 5.[3]

The Court's interpretation is also inconsistent with "congressional practice." *Id.*, at 243 (opinion of ROBERTS, C. J.). Congress has enacted dozens of statutes that require notice and a hearing before an officer can be removed. They all do so "in explicit terms." *Ibid.* These statutes, for instance, provide that an officer "may be removed by the President *only upon notice and hearing*," 5 U. S. C. § 7104(b) (emphasis added), or that "[a]ny such . . . removal may be made *only after notice and opportunity for a hearing*," 17 U. S. C. § 802(i) (emphasis added).[4] A month before the for-cause re-

Page Proof Pending Publication

1864, 1975, 2000e–4, 2286, 2495, 2996c, 3934, 4273, 5841, 7171, 7412(r)(6)(B), 10262, 10703, 12651a; 44 U. S. C. §§ 301, 3616; 45 U. S. C. §§ 154, 231f; 47 U. S. C. § 154; 48 U. S. C. §§ 1422, 1424b, 1614, 1821, 2121; 49 U. S. C. §§ 106, 114, 1111, 1301, 1325, 44946; 50 U. S. C. §§ 1803, 3041a, 4216; 52 U. S. C. §§ 20923, 30106; 54 U. S. C. § 304101.

[3] The Court characterizes the one line in *Reagan* and *Shurtleff* as not dicta, but a holding. *Ante*, at 553. It was dicta. Both cases were decided on other grounds: *Reagan* upheld a removal because the statute referenced an empty set of statutory protections, 182 U. S., at 425–427, and *Shurtleff* upheld a removal because the statute did not in "clear and explicit language" limit the President's power to remove for reasons beyond the statute, 189 U. S., at 315. The one line that the Court relies on concerned two categories of statutes that were not before the Court in either case.

[4] Other examples abound. See 5 U. S. C. § 7521 (limiting agency's power to effect "a removal" of an administrative law judge to "good cause established and determined by the Merits Systems Protection Board on the record after opportunity for hearing before the Board"); 10 U. S. C. § 942(c) ("Judges [of the Court of Appeals for the Armed Forces] may be removed

moval protection was restored to the Federal Reserve Act, Congress provided that members of the National Labor Relations Board would serve "for a term of five years" unless "removed by the President, *upon notice and hearing*, for

---

from office by the President, upon notice and hearing, for—(1) neglect of duty; (2) misconduct; or (3) mental or physical disability"); 15 U. S. C. § 7217(d)(3) ("The Commission may . . . remove from office . . . a member of the Board, if the Commission finds, on the record, after notice and opportunity for a hearing, that such member" met certain criteria); 16 U. S. C. § 1852(b)(6)(B) ("The Secretary may remove for cause any member . . . found by the Secretary, after notice and an opportunity for a hearing . . . to have committed an act prohibited by section 1857(1)(O) of this title"); 22 U. S. C. § 4106(e) ("The Chairperson may remove any other Board member, upon written notice, for corruption, neglect of duty, malfeasance, or demonstrated incapacity to perform his or her functions, established at a hearing, except where the right to a hearing is waived in writing"); § 4135(d) ("The Secretary of State may, upon written notice, remove a Board member for corruption, neglect of duty, malfeasance, or demonstrated incapacity to perform his or her functions, established at a hearing (unless the right to a hearing is waived in writing by the Board member)"); 26 U. S. C. § 7443(f) ("Judges of the Tax Court may be removed by the President, after notice and opportunity for public hearing, for inefficiency, neglect of duty, or malfeasance in office, but for no other cause"); 28 U. S. C. § 152(e) ("Before any order of removal may be entered, a full specification of charges shall be furnished to such bankruptcy judge who shall be accorded an opportunity to be heard on such charges"); § 176(b) ("Before any order of removal may be entered, a full specification of the charges shall be furnished to the judge involved, and such judge shall be accorded an opportunity to be heard on the charges"); § 631(i) ("Before any order or removal shall be entered, a full specification of the charges shall be furnished to the magistrate judge, and he shall be accorded by the judge or judges of the removing court, courts, council, or councils an opportunity to be heard on the charges"); 31 U. S. C. § 703(e) ("A Comptroller General or Deputy Comptroller General . . . may be removed at any time by . . . joint resolution of Congress, after notice and an opportunity for a hearing, only for" five specified causes); § 751(d) ("A member may be removed by a majority of the Board . . . only for inefficiency, neglect of duty, or malfeasance in office. A member subject to removal shall be given notice and an opportunity for a hearing before the Board unless the member waives the opportunity in writing"); 38 U. S. C. § 7101(b)(2) ("Any such removal may only be made after notice and opportunity for hearing"); § 7253(f)(2)

Cases Group Pending Publication

neglect of duty or malfeasance in office." Act of July 5, 1935, § 3(a), 49 Stat. 451 (emphasis added). Congress also enacted many other statutes, including the Federal Reserve Act, that do not require notice or a hearing.[5] Congress of course has many reasons not to require notice and a hearing, including that they can cause delay and uncertainty, can waste resources, and can empower the Judiciary at the expense of the political branches.

It is thus difficult to rationalize the Court's interpretation of the Federal Reserve Act in terms of ordinary meaning, the common law, or any statutory precedents. The more obvious rationale for the Court's interpretation today is not any principle of law, but instead the Court's view of "the Federal Reserve's unique historical status and role." *Ante*, at 546.

c

The Court's interpretation is also inconsistent with Article II and the canon of constitutional avoidance.

Rude Proof Pending Publication

Limits on the President's ability to remove executive officers are unconstitutional. "Under our Constitution, the

("Before a judge may be removed from office under this subsection, the judge shall be provided with a full specification of the reasons for the removal and an opportunity to be heard").

[5] See 12 U. S. C. § 3013(a) ("Any member appointed by the President may be removed for cause by the President"); 14 U. S. C. § 309(c)(1) ("An officer may be removed from the position of Director for cause at any time"); 39 U. S. C. § 202(a)(1) ("The Governors . . . may be removed only for cause"); § 502(a) ("The Commissioners . . . may be removed by the President only for cause"); 48 U. S. C. § 1424b ("[A] judge for the District Court of Guam . . . shall hold office for the term of ten years . . . unless sooner removed by the President for cause"); § 1614(a) ("[T]wo judges for the District Court of the Virgin Islands . . . shall hold office for terms of ten years . . . unless sooner removed by the President for cause"); § 1821(b)(1) ("[A] judge for the District Court for the Northern Mariana Islands . . . shall hold office for the term of ten years . . . unless sooner removed by the President for cause"); § 2121(e)(5)(B) ("The President may remove any member of the Oversight Board only for cause"); 49 U. S. C. § 49106(c)(6)(C) ("A member appointed by the President may be removed by the President for cause").

'executive power'—all of it—is 'vested in a President.'" *Seila Law*, 591 U. S., at 203 (plurality opinion). "To 'discharg[e] the duties of his trust,' the President must have the assistance of officers he can trust." *Slaughter*, 609 U. S., at 464. Thus, we explained in an opinion also released today, "the President may remove his subordinates at will," without cause, without notice, and without a hearing, so long as they exercise any executive power. *Id.*, at 442. Any statute that limits "[t]he President's power to remove—and thus supervise—those who wield executive power on his behalf" is unconstitutional. *Seila Law*, 591 U. S., at 204 (plurality opinion). This principle admits no exceptions: "The Constitution places all Executive power in the hands of the President." *Slaughter*, 609 U. S., at 439 (internal quotation marks omitted). "He and he alone is vested with '[t]he executive Power' of the United States." *Id.*, at 464. "Subordinates who exercise the President's power are subject to removal by him." *Ibid.* In recent decades, this Court has without fail held restrictions on the President's power of removal to be unconstitutional. See *Free Enterprise Fund* v. *Public Company Accounting Oversight Bd.*, 561 U. S. 477 (2010); *Seila Law*, 591 U. S. 197; *Collins*, 594 U. S. 220; *Slaughter*, 609 U. S., at 453–454. The Court has not upheld a removal restriction for a principal officer, like Cook, for nearly seven decades. See *Wiener* v. *United States*, 357 U. S. 349, 356 (1958) (relying on the "philosophy of *Humphrey's Executor*"); but see *Slaughter*, 609 U. S., at 450 (overruling *Humphrey's Executor*).

Page Proof Pending Publication

The Board "unquestionably exercises executive power, and must therefore be controlled by the Chief Executive, in whom such power is vested." *Slaughter*, 609 U. S., at 455. The Board "has the power to promulgate substantive rules that carry the force of law." *Id.*, at 454; see *supra*, at 570–571. Cook can use her regulatory power, for example, to change the fees on consumer debit-card transactions. *Corner Post*, 603 U. S., at 805. The Board also has the power to impose

monetary penalties, levy assessments, and examine private books and records. See *supra*, at 570–571; *Seila Law*, 591 U. S., at 206–207, 219 (majority opinion). Since Cook was restored to her position, the Board has issued many orders banning private individuals from banking, punishable with civil and criminal penalties. See Board of Governors of the Federal Reserve, Enforcement Actions (July 28, 2023), www.federalreserve.gov/supervisionreg/enforcementactions.htm (archived at perma.cc/UVQ4-99ZR); *Slaughter*, 609 U. S., at 451 ("When an agency 'executes' a congressional mandate against private parties, it exercises executive power"). The President, therefore, may remove Cook for any reason that he wants and by any procedure that he wants.

The President invoked the canon of constitutional avoidance in asking this Court to not interpret the Federal Reserve Act to require notice and a hearing. See Application 26–27; Reply Brief 8. Under the canon of constitutional avoidance, this Court does "not read the statute in a way" that renders it "unconstitutional if we can reasonably read it otherwise." *Kennedy* v. *Braidwood Management, Inc.*, 606 U. S. 748, 775 (2025). So, "where a statute is susceptible of two constructions, by one of which grave and doubtful constitutional questions arise and by the other of which such questions are avoided, our duty is to adopt the latter." *United States ex rel. Attorney General* v. *Delaware & Hudson Co.*, 213 U. S. 366, 408 (1909). Thus, if the Court's interpretation of the Federal Reserve Act would render it unconstitutional, then the Court must avoid that interpretation so long as another interpretation is "fairly possible." *United States* v. *Hansen*, 599 U. S. 762, 781 (2023) (internal quotation marks omitted).

The Court today upholds the constitutionality of a limitation on the President's ability to remove a principal executive officer for only the third time in American history. Its constitutional reasoning consists of two paragraphs. The

Page Proof Pending Publication

Court does not dispute that members of the Federal Reserve Board exercise (a great deal of) federal executive power. It does not dispute that any person who exercises federal executive power must be freely removable by the President. And it does not dispute that its holding today contravenes those principles by preventing the President from freely removing members of the Federal Reserve Board. Instead, the Court endorses a contradiction: "the Constitution vests the whole executive power in the President alone," *Slaughter*, 609 U. S., at 449 (internal quotation marks omitted), but the Board can exercise executive power "independen[t] from Presidential control," *ante,* at 555.

The Court's constitutional reasoning depends entirely on an ahistorical analogy between the Board and the First and Second Banks of the United States. See *ante*, at 554–556. The problem for the Court is that the First and Second Banks were banks with no executive power, whereas the Board is unquestionably a federal agency that wields considerable executive power. See *supra*, at 566–572. The Board does not follow in "our Nation's tradition of central banking" at all. *Ante*, at 542; see *supra*, at 566–570. It is not a "bank," *ante,* at 555, but a novel "federal agency" with "broad powers affecting the entire banking and currency system," Cushman 153; see *supra*, at 568–569. The " 'founders of our Government,' " *ante,* at 555, thought that distinction was significant. Although the Court attempts to imply otherwise, *ibid.*, it does not deny that the First and Second Banks of the United States exercised no executive power.

Page Proof Pending Publication

B

The President is also likely to succeed on an independent ground: The injunction against Cook's removal exceeds the limits on federal judicial authority. "Observing the limits on judicial authority . . . is required by a judge's oath to follow the law." *Trump* v. *CASA, Inc.*, 606 U. S. 831, 858 (2025). The Court's holding that Cook was entitled to an

injunction based on the Federal Reserve Act contradicts some of its foundational precedents on the authority of the federal courts. The Court today holds that a plaintiff may sue to enforce federal law without a congressionally-created right of action, contra, *Alexander* v. *Sandoval*, 532 U. S. 275, 286 (2001); against the sovereign without its consent, contra, *Larson* v. *Domestic and Foreign Commerce Corp.*, 337 U. S. 682, 693 (1949); for equitable relief restoring a removed officer, contra, *In re Sawyer*, 124 U. S. 200, 210 (1888); and in a manner that intrudes upon the President's exclusive and preclusive constitutional authority, contra, *Trump* v. *United States*, 603 U. S. 593, 609 (2024).

Cook lacks a right of action to enforce the terms of the Federal Reserve Act against government officials. No plaintiff, of course, can sue without a right of action. See *Sandoval*, 532 U. S., at 286. When seeking to enforce the terms of a federal statute, such as the Federal Reserve Act, that plaintiff's right of action must come from Congress, because "Congress determines who may sue to enforce federal law." *FS Credit Opportunities Corp.* v. *Saba Capital Master Fund, Ltd.*, 608 U. S. 608, 613 (2026). When seeking to enforce the terms of a federal statute against the Government, which is otherwise immune from suit, the plaintiff must also demonstrate that the Government clearly consented to the suit. See *Larson*, 337 U. S., at 693.

Page Proof Pending Publication

The Court does not explain how Cook has overcome these limits to enforce the Federal Reserve Act against the Executive Branch here. All agree that Cook cannot proceed under the Administrative Procedure Act, the ordinary right of action for lawsuits against the Executive Branch, because she does not challenge any final agency action. See 5 U. S. C. §704. The Court does not accept Cook's argument that she has a nonstatutory ultra vires claim—likely because such an argument would implicate threshold requirements that Cook cannot satisfy and merits standards that she cannot meet. See *NRC*, 605 U. S., at 681 ("'Hail Mary pass'"). The Court does not suggest that Cook satisfies the extraordinary stand-

ards for mandamus relief. See *United States* v. *Duell*, 172 U. S. 576, 582 (1899) ("clear and indisputable"). Instead, the Court proceeds to the merits without identifying a right of action to enforce the Federal Reserve Act at all, let alone one that overcomes sovereign immunity. The Court appears satisfied that Congress did not expressly "exempt the President's removal of Governors for cause from judicial review." *Ante*, at 542. "But federal courts do not exercise general oversight of the Executive Branch; they resolve cases and controversies consistent with the authority Congress has given them." *CASA*, 606 U. S., at 861.[6]

Even if Cook had a right of action that overcame sovereign immunity, this Court's precedents would foreclose the preliminary injunction that she obtained here. The District Court issued a preliminary injunction, which is an equitable

[6] In a footnote, the Court hypothesizes that Cook can enforce the terms of the Federal Reserve Act in "'equity.'" *Ante*, at 549, n. 2. But federal statutory terms do not by their own force create a right to bring free-standing claims in equity. Instead, "[l]ike substantive federal law itself, private rights of action to enforce federal law must be created by Congress." *Alexander* v. *Sandoval*, 532 U. S. 275, 286 (2001).

To bring a pre-enforcement equitable claim of the sort that the Court describes, Cook would have to show that her suit seeks to stop an official from committing "tortious conduct" against her, such as an imminent unconstitutional enforcement action. *Trump* v. *CASA, Inc.*, 606 U. S. 831, 846, n. 9 (2025). Cook made no such showing here, and the Court does not suggest otherwise.

Likewise, when a plaintiff brings a claim in equity against *federal* officials, this Court requires the plaintiff to make four additional showings that Cook cannot satisfy here: The plaintiff must demonstrate that the defendant "has taken action entirely in excess of its delegated powers," that the defendant's action is "contrary to a specific prohibition in a statute," that no "statutory review scheme provides aggrieved persons with a meaningful and adequate opportunity for judicial review," and that no "statutory review scheme forecloses all other forms of judicial review." *NRC*, 605 U. S., at 681 (internal quotation marks omitted; emphasis deleted). The Court has described such an equitable claim as a "Hail Mary pass" that "rarely succeeds." *Id.*, at 681–682 (internal quotation marks omitted). The Court also waives these requirements for Cook.

Page Proof Pending Publication

remedy. See *Grupo Mexicano de Desarrollo, S. A.* v. *Alliance Bond Fund, Inc.*, 527 U. S. 308, 318–319 (1999). The equitable jurisdiction of the federal courts is limited to "only those sorts of equitable remedies traditionally accorded by courts of equity at our country's inception." *CASA*, 606 U. S., at 841 (internal quotation marks omitted). Traditionally, courts of equity could not grant injunctions to wrongly removed officers to restore them to office. "No principle of the law of injunctions, and perhaps no doctrine of equity jurisprudence is more definitely fixed or more clearly established than that courts of equity will not interfere by injunction to determine questions concerning the appointment of public officers or their title to office." 2 J. High, Law of Injunctions § 1312, p. 863 (2d ed. 1880).

This Court has therefore long held, in categorical terms, that "a court of equity" "has no jurisdiction" over "the removal of public officers." *In re Sawyer*, 124 U. S., at 210. "'[A] court of equity will not, by injunction, restrain an executive officer from making a wrongful removal.'" *White* v. *Berry*, 171 U. S. 366, 377 (1898); accord, *Harkrader* v. *Wadley*, 172 U. S. 148, 165 (1898) ("[T]he general rule, both in England and in this country, is that courts of equity have no jurisdiction . . . over the appointment and removal of public officers"). Under this Court's precedents, the District Court therefore lacked authority to enter the relief it provided: a "preliminary injunction" allowing Cook to exercise official powers after the President removed her. 804 F. Supp. 3d, at 44.

Page Proof Pending Publication

The Court now reads the categorical statements in our precedents to apply to only "fina[l]" injunctive relief, not "interim" injunctive relief. *Ante*, at 549. The Court's newfound distinction does not make sense. "The standard for a preliminary injunction is essentially the same as for a permanent injunction." *Amoco Production Co.* v. *Gambell*, 480 U. S. 531, 546, n. 12 (1987); accord, *Winter* v. *Natural Resources Defense Council, Inc.*, 555 U. S. 7, 32 (2008). In-

terim injunctive relief is still an exercise of "jurisdiction" in "equity," so it does not reach "the removal of public officers." *In re Sawyer*, 124 U. S., at 210. The Court's distinction is also foreclosed by our own precedent, which holds that "the authority to issue *interim* injunctive relief . . . was held lacking in cases such as *White* v. *Berry*." *Sampson* v. *Murray*, 415 U. S. 61, 72 (1974) (emphasis added). *White* and *Sawyer* govern "all equitable relief." 415 U. S., at 83. The Court is therefore incorrect that "[n]either case holds that equity is unavailable in the interim." *Ante*, at 549.

Finally, even if she had a right of action, a waiver of sovereign immunity, and a basis for equitable relief, Cook would not be entitled to prevail because she challenges the removal of an executive officer by the President. Just two Terms ago, this Court said that both Congress and the Judiciary lack the power to impede the President's removal of his own executive officers. The President's " 'power to remove—and thus supervise—those who wield executive power' " is within his " 'conclusive and preclusive' " constitutional authority, no different from his power to issue pardons or Congress's power to impeach. *Trump*, 603 U. S., at 608–609; see also *Youngstown Sheet & Tube Co.* v. *Sawyer*, 343 U. S. 579, 638, and n. 4 (1952) (Jackson, J., concurring) (describing the President's "exclusive power of removal in executive agencies" as "conclusive and preclusive"). Even "Congress cannot act on" the "President's actions on subjects within his 'conclusive and preclusive' constitutional authority," including his removal decisions. *Trump*, 603 U. S., at 609. Likewise, "courts cannot examine" removal decisions falling within that same authority. *Ibid.* Thus, "once it is determined that the President acted within the scope of his exclusive authority," as he did here, "his discretion in exercising such authority cannot be subject to further judicial examination." *Id.*, at 608.

Today's decision is an unprecedented incursion on the Executive Branch. Neither the parties nor the Court can point

Page Proof Pending Publication

to a single time in American history that this Court has upheld an injunction against the President's removal of an executive officer. In the 237-year history of our Constitution, this Court has, by all accounts, never done so. See *Bessent* v. *Dellinger*, 604 U. S. 1117, 1120 (2025) (GORSUCH, J., dissenting from order holding application in abeyance) (recounting the lack of historical precedent for such an order).

III

Finally, the balance of harms and equities also favors the President. "[T]he Government faces greater risk of harm from an order allowing a removed officer to continue exercising the executive power than a wrongfully removed officer faces from being unable to perform her statutory duty." *Trump* v. *Wilcox*, 605 U. S. 922, 923 (2025). The equities in this case are relevantly similar to the equities in every removal case in which the Court has granted a stay. See *ibid.*; *Trump* v. *Boyle*, 606 U. S. 989, 989–990 (2025); *Trump* v. *Slaughter*, 606 U. S. 1051 (2025). The Government also suffers irreparable harm from all "injunctions that likely exceed the authority" of the federal courts. *CASA*, 606 U. S., at 860.

Page Proof Pending Publication

The Court offers many policy arguments for an "independent" Federal Reserve Board. *Ante*, at 538; accord, *ante*, at 555–556; *ante*, at 561 (KAVANAUGH, J., concurring) (explaining that the "Federal Reserve's independence" prevents "political upheaval" and "turmoil in the U. S. and world economies" and promotes the "efficacy of U. S. monetary policy"). As the Court tells it, the Board of Governors of the Federal Reserve System has for the past century served to provide the American people with "'stable prices,'" "'maximum employment,'" no "ruinous financial panics," and a banking system free from "'suspicion.'" *Ante*, at 536, 538, 547. The Court credits this century of supposed success to the Board's "independence" from the President, and, in turn, the voters—the "'common people'" who play the antagonist in the Court's account of the 19th century. *Ante*, at 537.

Many do not share the Court's rosy appraisal of the past century. But if the Court prefers an independent Federal Reserve Board, then its issue is not with the President but with the Constitution. Regardless of whether unaccountable executive officers like Cook would better govern the economy, the Framers rejected such a "promised land of technocratic governance." *Slaughter*, 609 U. S., at 452; see A. de Tocqueville, Democracy in America 86–88, 233–235 (H. Mansfield & D. Winthrop transl. 2000). They instead chose government by the people. As a court, our duty is not to second-guess that decision, but to uphold it.

I respectfully dissent from the denial of the stay application.

JUSTICE ALITO, with whom JUSTICE GORSUCH joins, dissenting.

This case presents many thorny legal questions. What is the substance of the "for cause" removal standard as applied to Federal Reserve Governors? 12 U. S. C. § 242. Do Governors have an implied right of action to enforce that removal protection? See *Alexander* v. *Sandoval*, 532 U. S. 275, 286–287 (2001). What degree of judicial review, if any, applies to the President's determination that cause exists? See *Reagan* v. *United States*, 182 U. S. 419, 425 (1901). What showing of "irreparable injury," if any, can entitle a removed executive officer to an interim reinstatement order? See *Sampson* v. *Murray*, 415 U. S. 61, 84, 92, n. 68 (1974). Does the President's social-media post purporting to remove Governor Cook give her standing to seek an injunction against parties who never attempted to effectuate her removal? See *Whole Woman's Health* v. *Jackson*, 595 U. S. 30, 48 (2021). May courts, consistent with Articles II and III of the Constitution, countermand the President's attempted removal of a principal executive officer? See *Trump* v. *United States*, 603 U. S. 593, 608–609 (2024). Can the President appeal an injunction that no enjoined party challenges?

Page Proof Pending Publication